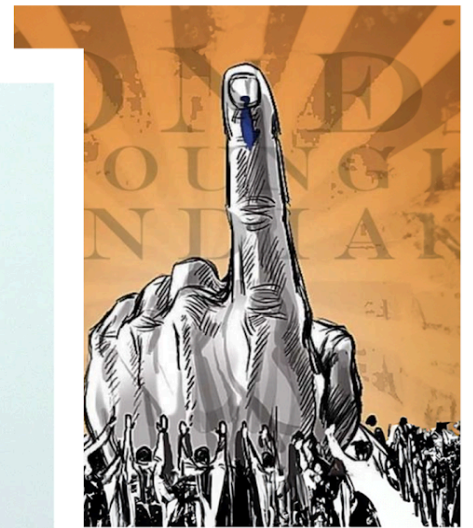


# **General Knowledge**

## **Indian Polity**

### **STUDY NOTES**

#### **Constitutional Bodies**

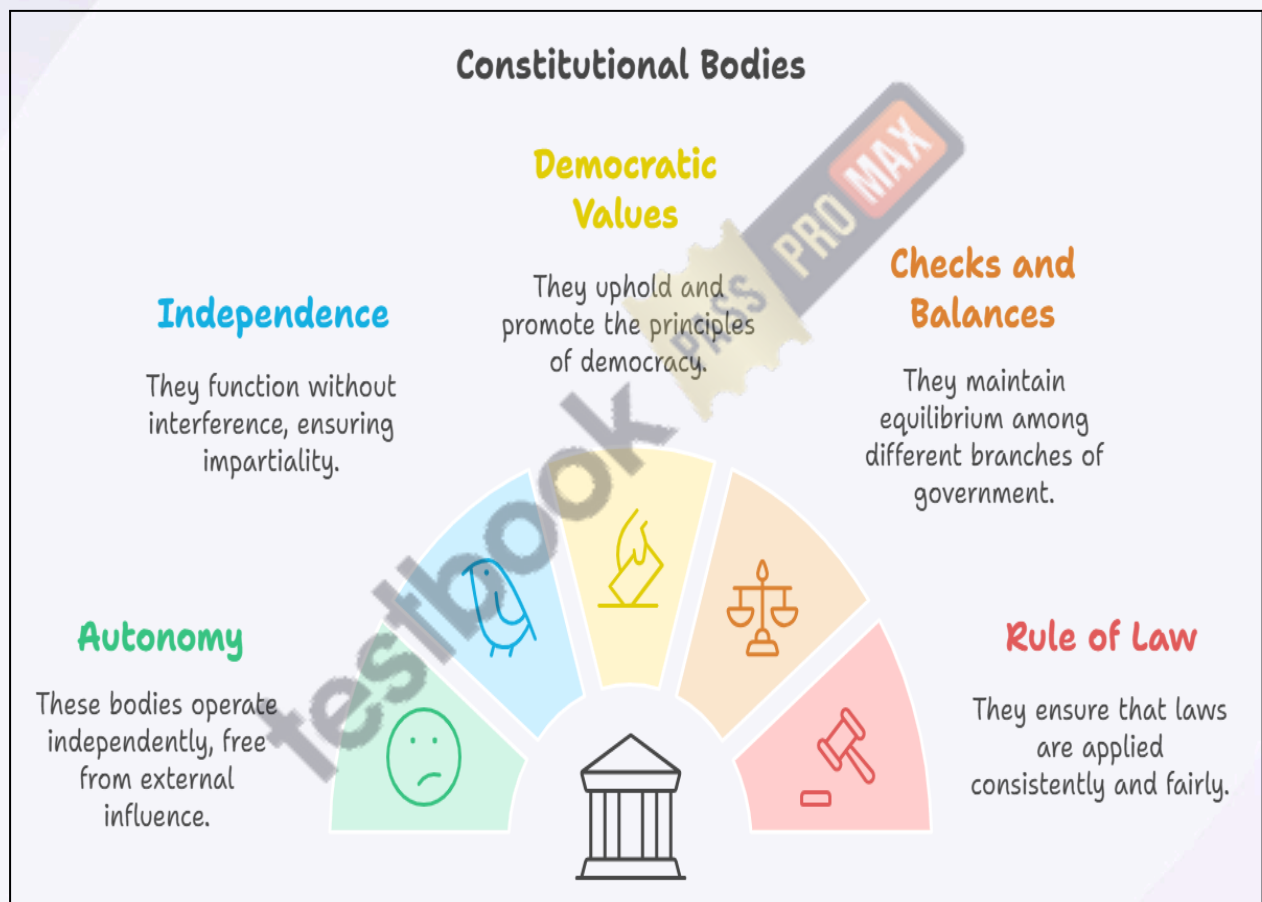


# Constitutional bodies

## Constitutional Bodies: Background, History, and Importance

### Background:

- The Constitution of India establishes constitutional bodies to carry out specific functions essential for the country's governance and development.
- These bodies derive their authority directly from the Constitution, making them autonomous and independent.
- They play a crucial role in upholding democratic values, maintaining checks and balances, and ensuring the rule of law in India.



### History:

- The establishment of constitutional bodies began with the framing of the Indian Constitution in 1949.
- The framers of the Constitution, inspired by principles from other democratic systems, believed in the importance of institutions that could operate independently of the executive and legislature to safeguard the rights and interests of the public.
- These bodies were created to oversee and regulate crucial sectors such as elections, finances, civil services, and more.

### Importance:

- **Independence and Autonomy:** Constitutional bodies are designed to function independently of political influence, ensuring unbiased decision-making.
- **Checks and Balances:** They act as a check on the powers of the executive and the legislature, preventing misuse of authority.
- **Accountability and Transparency:** These bodies ensure that government actions are transparent and that officials are held accountable for their conduct.
- **Upholding Democracy:** They play a critical role in maintaining democratic values by ensuring free and fair elections, protecting fundamental rights, and promoting social justice

| Constitutional Body                             | Article             | Establishment Year              | Function                                                                                                                          | Importance                                                                                      |
|-------------------------------------------------|---------------------|---------------------------------|-----------------------------------------------------------------------------------------------------------------------------------|-------------------------------------------------------------------------------------------------|
| Election Commission of India (ECI)              | Article 324         | 1950                            | Conducts free and fair elections to the Parliament, State Legislatures, and offices of the President and Vice President of India. | Ensures the democratic process through impartial and transparent elections.                     |
| Union Public Service Commission (UPSC)          | Articles 315 to 323 | 1950                            | Conducts exams for the recruitment of All India Services and Central Services.                                                    | Ensures merit-based recruitment, strengthening the civil services system.                       |
| Comptroller and Auditor General of India (CAG)  | Article 148         | 1950                            | Audits the accounts of the government and public sector organizations.                                                            | Ensures transparency and accountability in government spending.                                 |
| Finance Commission (FC)                         | Article 280         | 1951                            | Makes recommendations on the distribution of tax revenues between the Union and the States.                                       | Ensures a fair distribution of financial resources between the Centre and the States.           |
| National Commission for Scheduled Castes (NCSC) | Article 338         | 1978 (as a separate commission) | Safeguards the interests of the Scheduled Castes in India.                                                                        | Ensures social justice and protection of the SC community from discrimination and exploitation. |
| National Commission for Scheduled Tribes (NCST) | Article 338A        | 2003                            | Safeguards the interests of the Scheduled Tribes in India.                                                                        | Ensures protection of ST communities from exploitation, and promotes their development.         |



|                                                        |                     |      |                                                                                                                |                                                                                                                                         |
|--------------------------------------------------------|---------------------|------|----------------------------------------------------------------------------------------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------|
| <b>Attorney General of India</b>                       | Article 76          | 1950 | Chief legal advisor to the government of India represents the government in legal matters.                     | Plays a key role in upholding the rule of law and ensuring that the government's legal framework is in alignment with the Constitution. |
| <b>Advocate General of the State</b>                   | Article 165         | 1950 | Legal advisor to the State government and represents the state in legal matters.                               | Ensures that state government actions are within the legal framework of the Constitution.                                               |
| <b>State Public Service Commissions (SPSC)</b>         | Articles 315 to 323 | 1950 | Conducts exams for recruitment to state services.                                                              | Ensures merit-based recruitment in the state-level civil services.                                                                      |
| <b>Inter-State Council</b>                             | Article 263         | 1990 | Facilitates coordination and dispute resolution between states and the Centre.                                 | Promotes cooperative federalism and ensures smooth intergovernmental relations.                                                         |
| <b>Special Officer for Linguistic Minorities</b>       | Article 350B        | 1950 | Investigates matters related to the safeguards of linguistic minorities.                                       | Protects linguistic minorities and promotes their rights and interests.                                                                 |
| <b>National Commission for Backward Classes (NCBC)</b> | Article 338B        | 2018 | Safeguards the interests of the Backward Classes and recommends measures for their socio-economic development. | Ensures social justice and the welfare of the OBC community.                                                                            |
| <b>Goods and Services Tax (GST) Council</b>            | Article 279A        | 2016 | Decides on matters related to the implementation of Goods and Services Tax.                                    | Ensures uniform taxation policy across the country, promoting ease of doing business.                                                   |

## Election Commission

### Introduction

Related Article: Article 324, talks about elections to parliament, state legislatures, president of India and vice-president of India shall be vested in the election commission.

### Composition and Appointment

- Consists of the chief election commissioner and such number of other election commissioners, if any, as the president may from time to time fix.
- The president shall make the appointment of the CEC and other ECs.
- The CEC shall act as the chairman of the election commission.
- The president may appoint regional commissioners after consultation with the EC.
- The president shall determine the conditions of service and tenure.

## Membership

Since its inception in 1950, the election commission functioned as a single-member body consisting of the Chief Election Commissioner.

- In 1989, the president appointed two more election commissioners to cope with the increased work (the voting age was lowered from 21 to 18 years).
- However, the two posts of election commissioners were abolished in January 1990 and the Election Commission reverted to the earlier position.
- Again in October 1993, the president appointed two more election commissioners. Since then and till today, the Election Commission has been functioning as a multi-member body consisting of three election commissioners.

## Salary

| Position                                 | Powers                                             | Salary              | Equivalent to                                     |
|------------------------------------------|----------------------------------------------------|---------------------|---------------------------------------------------|
| <b>Chief Election Commissioner (CEC)</b> | Equal powers as other Election Commissioners (ECs) | Equal salary as ECs | Salary equivalent to a Judge of the Supreme Court |
| <b>Election Commissioners (ECs)</b>      | Equal powers as CEC and other ECs                  | Equal salary as CEC | Salary equivalent to a Judge of the Supreme Court |

## Decision Making

In case of a difference of opinion amongst the CEC and/or two other ECs, the matter is decided by the Commission by majority.

## Term

6 years/65 years, whichever is earlier. They can resign at any time or can also be removed before the expiry of their term.

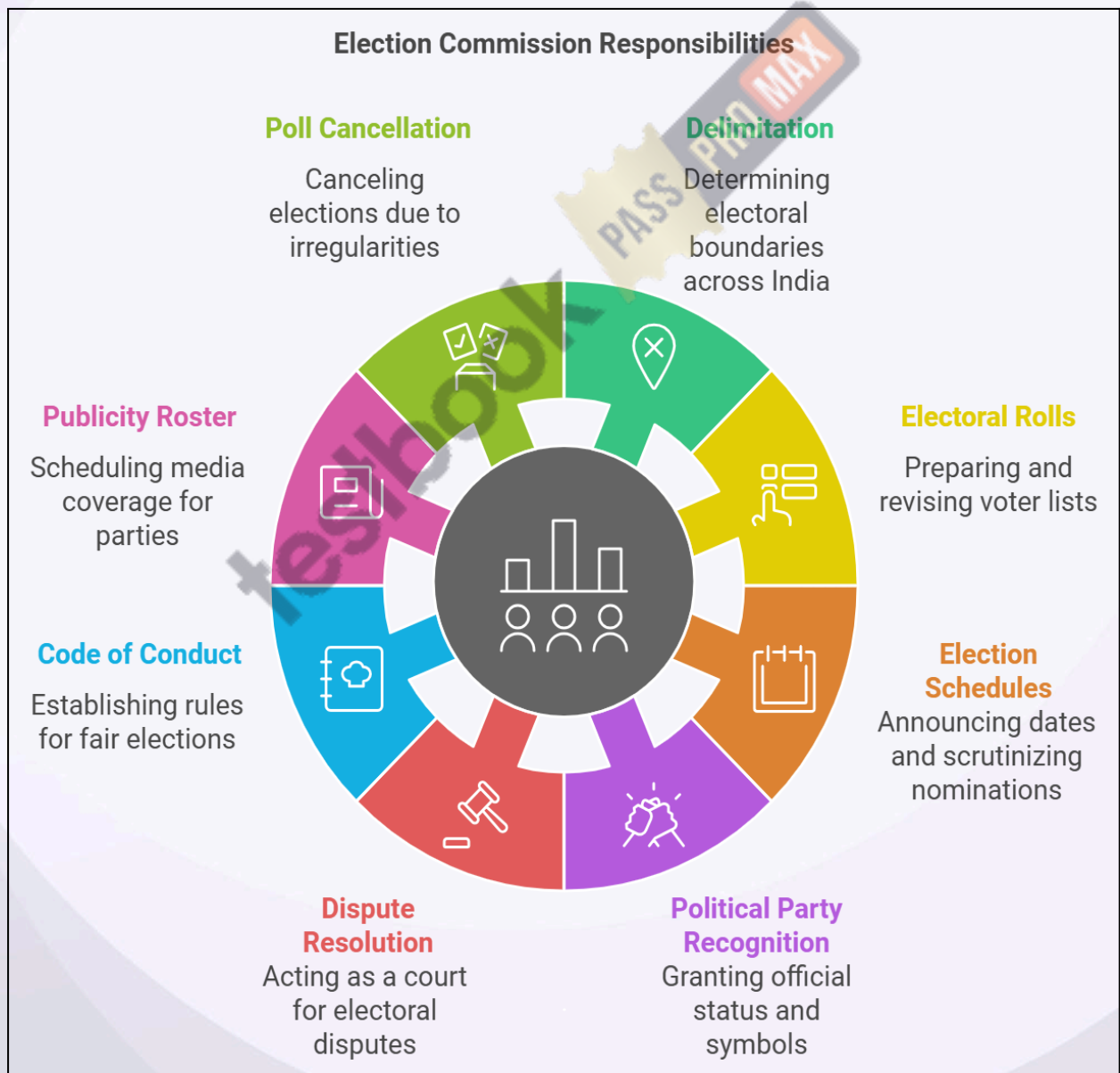
## Independence of CEC

- Security of tenure for CEC.

- Removal grounds same as a judge of the Supreme Court
- He does not hold his office till the pleasure of the president
- The service conditions cannot be varied to his disadvantage after his appointment.
- Any other election commissioner or a regional commissioner cannot be removed from office except on the recommendation of the chief election commissioner.

### Concerns

- The Constitution has not prescribed the qualifications (legal, educational, administrative, or judicial) of the members of the Election Commission.
- The Constitution has not specified the term of the members
- The Constitution has not debarred the retiring election commissioners from any further appointment by the government.



## Powers and Functions

| Powers and Functions                                                                        | Description                                                                                                                                    |
|---------------------------------------------------------------------------------------------|------------------------------------------------------------------------------------------------------------------------------------------------|
| Determine territorial areas of electoral constituencies                                     | Under the Delimitation Commission Act, the Election Commission determines the territorial boundaries of electoral constituencies across India. |
| Prepare and periodically revise electoral rolls                                             | The Election Commission prepares, revises, and registers all eligible voters periodically.                                                     |
| Notify election dates and schedules, scrutinize nomination papers                           | The Commission is responsible for announcing the election schedule and examining the nomination papers of candidates.                          |
| Grant recognition to political parties and allot election symbols                           | The Commission grants official recognition to political parties and allots symbols to them for elections.                                      |
| Act as a court for settling disputes on recognition and symbols                             | The Election Commission acts as a court to resolve disputes regarding the recognition of political parties and the allocation of symbols.      |
| Appoint officers to inquire into disputes related to electoral arrangements                 | The Commission appoints officers to investigate disputes arising from electoral arrangements.                                                  |
| Determine the code of conduct for elections                                                 | The Commission establishes the code of conduct that must be followed by political parties and candidates during elections.                     |
| Prepare a roster for publicity of political party policies on radio and TV during elections | The Commission prepares a schedule for fair publicity of party policies on radio and television during elections.                              |
| Advise the President/Governor on disqualification of Parliament/state legislature members   | The Commission advises the President or Governor on matters concerning the disqualification of members of Parliament or state legislatures.    |
| Cancel polls due to rigging, violence, or other irregularities                              | The Commission has the authority to cancel elections if rigging, violence, or other irregularities are detected.                               |

|                                                                             |                                                                                                                                   |
|-----------------------------------------------------------------------------|-----------------------------------------------------------------------------------------------------------------------------------|
| Request the President/Governor to requisition necessary staff for elections | The Election Commission can request the President or Governor to provide the required personnel for conducting elections.         |
| Register political parties and grant status based on poll performance       | The Commission registers political parties and classifies them as national or state parties based on their electoral performance. |

The Election Commission is assisted by deputy election commissioners.

- At the state level, the EC is assisted by the chief electoral officer who is appointed by the CEC in consultation with the state government.
- At the district level, the collector acts as the district returning officer.
  - He appoints a returning officer for every constituency in the district and a presiding officer for every polling booth in the constituency.

## 1. Union Public Service Commission

### Introduction

- **UPSC** is the central recruiting agency in India
- **Articles 315 to 323(Part XIV)** provide composition, appointment, and removal of members along with the independence, powers, and functions of the UPSC.

### Composition

It consists of a chairman and other members appointed by the president of India (the President determines its composition).

- 9-11 members
- No qualifications (except that 1/2 of the members of the Commission should be such persons who have held office for at least 10 years either under the Government of India or under the government of a state).
- The Constitution also authorizes the president to determine the conditions of service of the chairman and other members of the Commission.

### Term

6 years/ 65 years, whichever is earlier.

- They can relinquish their offices at any time by addressing their resignation to the president.

The President can appoint one of the members of the UPSC as an acting chairman in the following two circumstances

- When the office of the chairman falls vacant; or



- When the chairman is unable to perform his functions due to absence or some other reason.

The acting chairman functions till a person appointed as chairman enters the duties of the office or till the chairman can resume his duties.

## Removal

The President can remove the chairman or any other member of UPSC:

- If he is adjudged insolvent (that is, has gone bankrupt);
- If he engages, in any paid employment outside the duties of his office; or
- If he is, in the opinion of the president, unfit to continue in office because of the infirmity of mind or body.

If removal ground is **misbehavior**, the president has to refer the matter to the Supreme Court for an inquiry.

If the Supreme Court, after the inquiry, upholds the cause of **removal** and advises so, the president can remove the chairman or a member.

- The advice tendered by the Supreme Court in this regard is binding on the president. During an inquiry by the Supreme Court, the president can suspend the chairman or the member of UPSC.

The Constitution states that the chairman or any other member of the UPSC is deemed to be guilty of misbehavior if he

- is concerned or interested in any contract or agreement made by the Government of India or the government of a state, or
- participates in any way in the profit of such contract or agreement or any benefit

## Independence

- They enjoy the security of tenure.
- The conditions of service cannot be varied to his disadvantage after his appointment.
- The entire expenses including salaries, allowances, and pensions are charged to the Consolidated Fund of India.
- The chairman of UPSC (on ceasing to hold office) is not eligible for further employment in the Government of India or a state
- A member of UPSC (on ceasing to hold office) is eligible for appointment as the chairman of UPSC or a State Public Service Commission (SPSC), but not for any other employment in the Government of India or a state
- The chairman or a member of UPSC is (after having completed his first term) not eligible for reappointment to that office (i.e., not eligible for second term).

## Roles and Functions

- Recruitment to the all-India services and Central services: Group A and Group B

- Not concerned with the classification of services, pay and service conditions, cadre management, training, and so on.
- These matters are handled by the Department of Personnel and Training (Central Personnel Agency in India)
- Recommendations made by it are advisory, not binding on the government.
- If the government fails to consult UPSC, the aggrieved public servant has no remedy in court.
- Selection by the UPSC does not confer any right to the post upon the candidate
- The jurisdiction of UPSC can be extended by an act made by the Parliament.
- The UPSC presents, annually, to the president a report on its performance
- Report placed before both the Houses of Parliament

### Limitations

- While making reservations of appointments or posts in favor of any backward class of citizens/SC & ST/ group C and group D services.
- Temporary appointment to a post (Less than a year).

The president can exclude posts, services, and matters from the purview of the UPSC.

- But all such regulations made by the president shall be laid before each House of Parliament for at least 14 days.
- The Parliament can amend or repeal them.

## 2. State Public Service Commission

### Introduction

Articles 315 to 323 - Part XIV provides the information about composition, appointment, and removal of members, power, and functions, and independence of an SPSC.

### Composition

- It consists of a chairman and other members appointed by the Governor of state. (Governor determines the strength).
- No qualifications (except that 1/2 of the members of the Commission should be such persons who have held office for at least 10 years either under the Government of India or under the government of a state).
- The Constitution also authorizes the Governor to determine the conditions of service of the chairman and other members of the Commission.

### Term

6 years/ 62 years, whichever is earlier.

- They can relinquish their offices at any time by addressing their resignation to the Governor.

The Governor can appoint one of the members of the SPSC as an acting chairman in the following two circumstances

- When the office of the chairman falls vacant; or
- When the chairman is unable to perform his functions due to absence or some other reason.

The acting chairman functions till a person appointed as chairman enters the duties of the office or till the chairman can resume his duties.

### Removal

- They can be removed only by the president (and not by the governor).
- On the same grounds and in the same manner as UPSC.
- He can remove him under the following circumstances:
  - If he is adjudged insolvent (that is, has gone bankrupt);
  - If he engages, in any paid employment outside the duties of his office; or
  - If he is, in the opinion of the president, unfit to continue in office because of the infirmity of mind or body.

### Independence

- They enjoy the security of tenure.
- The conditions of service cannot be varied to his disadvantage after his appointment.
- The entire expenses including salaries, allowances, and pensions are charged to the Consolidated Fund of India.

### Appointment and Reappointment

- The chairman of an SPSC (on ceasing to hold office) is eligible for appointment as the chairman or a member of the UPSC or as the chairman of any other SPSC, but not for any other employment under the Government of India or a state.
- A member of an SPSC (on ceasing to hold office) is eligible for appointment as the chairman or a member of the UPSC, or as the chairman of that SPSC or any other SPSC, but not for any other employment under the Government of India or a state.
- The chairman or a member of an SPSC is (after having completed his first term) not eligible for reappointment to that office (that is, not eligible for second term).

### Role

- It advises the government when consulted, on promotion and disciplinary matters.
- Not concerned with the classification of services, pay and service conditions, cadre management, training, and so on.

- These matters are handled by the Department of Personnel or the General Administration Department (central personnel agency in the state).
- Recommendations made by it are advisory, not binding on the government.
  - If the government fails to consult SPSC, the aggrieved public servant has no remedy in a court.
  - Selection by the SPSC does not confer any right to the post upon the candidate
- The jurisdiction of SPSC can be extended by an act made by the state legislature.
- The SPSC presents, annually, to the governor a report on its performance
  - Report placed before both the Houses of Parliament

### Limitations

- While making reservations of appointments or posts in favor of any backward class of citizens/SC & ST/
  - The governor can exclude posts, services, and matters from the purview of the SPSC.
  - But all such regulations made by the Governor shall be laid before each House of State legislature for at least 14 days. The state legislature can amend or repeal them.

## 3. National Commission for SCs

### Introduction

- Related Article - Article 338

### Composition and Appointment

- It consists of a chairperson, a vice-chairperson, and three other members.
- They are appointed by the President by warrant under his hand and seal.
- Their conditions of service and tenure of office are also determined by the President

### Evolution of the Commission

Originally, Article 338 of the Constitution provided for the appointment of a Special Officer for Scheduled Castes (SCs) and Scheduled Tribes (STs) to investigate all matters relating to the constitutional safeguards for the SCs and STs

- The 89th CAA, 2003 bifurcated the combined National Commission for SCs and STs into two separate bodies, namely, the National Commission for SCs (under Article 338) and the National Commission for STs (under Article 338-A).

### Report of the Commission

- The commission presents an annual report to the president.



- The President places all such reports before the Parliament, along with a memorandum explaining the action taken on the recommendations made by the Commission.
- It should also contain the reasons for the non-acceptance of any of such recommendations.
- The President also forwards any report of the Commission about a state government to the state governor.
- The governor also places it before the state legislature, along with a memorandum

### **Powers of the Commission**

- The Commission is vested with the power to regulate its procedure.
- It has all the powers of a civil court in respect of the following matters:
  - Summoning any person from any part of India and examining him on oath;
  - Requiring the discovery and production of any document;
  - Receiving evidence on affidavits;
  - Requisitioning any public record from any court or office;
  - Issuing summons for the examination of witnesses and documents; and
  - Any other matter which the President may determine.

The Central government and the state governments are required to consult the Commission on all major policy matters affecting the SCs, OBCs, and the Anglo-Indian Community and report to the President upon their work.

## **4. National Commission for STs**

### **Introduction**

- Related Article - Article 338-A

### **Composition and Appointment**

- It consists of a chairperson, a vice-chairperson, and three other members.
- They are appointed by the President by warrant under his hand and seal.
- Their conditions of service and tenure of office are also determined by the President

### **Functions of the Commission**

- Conferring ownership rights for minor forest produce to STs living in forest areas
- Safeguard the rights of the tribal communities over mineral resources, water resources, etc.
- Relief and rehabilitation measures for tribal groups displaced by development projects

- Prevent the alienation of tribal people from the land
- Maximum cooperation of tribal communities for protecting forests and undertaking social afforestation
- Implementation of the Provisions of Panchayats (Extension to the Scheduled Areas) Act, 1996
- Reduce and ultimately eliminate the practice of shifting cultivation by tribals

### Report of the Commission

- The commission presents an annual report to the president.
- The President places all such reports before the Parliament, along with a memorandum explaining the action taken on the recommendations made by the Commission.
- It should also contain the reasons for the non-acceptance of any of such recommendations.
- The President also forwards any report of the Commission about a state government to the state governor.
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  - Requiring the discovery and production of any document;
  - Receiving evidence on affidavits;
  - Requisitioning any public record from any court or office;
  - Issuing summons for the examination of witnesses and documents
  - Any other matter which the President may determine.

## 5. National Commission for Backward Classes

### Introduction

- 102<sup>nd</sup> Constitution Amendment Act, 2018 provides constitutional status to the National Commission for Backward Classes (NCBC).
- It has the authority to examine complaints and welfare measures regarding socially and educationally backward classes.
- Previously NCBC was a statutory body under the Ministry of Social Justice and Empowerment.

## Background

- Two backward-class commissions were appointed in the 1950s and 1970s under Kaka Kalelkar and B.P. Mandal respectively.
- In the Indra Sawhney case of 1992, the Supreme Court directed the government to create a permanent body for various Backward Classes
- Parliament passed the National Commission for Backward Classes Act in 1993 and constituted the NCBC.
- The 123<sup>rd</sup> Constitution Amendment Bill of 2017 was introduced in Parliament to safeguard the interests of backward classes more effectively.

## Structure of NCBC

- The Commission consists of five members including a Chairperson, Vice-Chairperson, and three other Members appointed by the President by warrant under his hand and seal
- The President determines the conditions of service and tenure.

## Constitutional Provisions

- Article 340 deals with the need to identify those "socially and educationally backward classes", understand the conditions of their backwardness, and make recommendations to remove the difficulties they face.
- 102<sup>nd</sup> Constitution Amendment Act inserted new Articles 338 B and 342 A.
- The amendment also brings about changes in Article 366.
- Article 338B provides authority to NCBC to examine complaints and welfare measures regarding socially and educationally backward classes.
- Article 342 A empowers the President to specify socially and educationally backward classes in various states and union territories.
- He can do this in consultation with the Governor of the concerned State.
- the law enacted by Parliament will be required if the list of backward classes is to be amended.

## 6. Finance Commission

### Introduction

- Article 280
- Constituted by the president of India every fifth year or as he considers necessary.

### Composition

- It consists of a chairman and four other members to be appointed by the president.
- They hold office as specified by the president in his order.

- Eligible for reappointment.
- Parliament determines the qualifications of members and how they should be selected.
- As per the Parliament:
  - The chairman should be a person having experience in public affairs and the four other members should be selected from amongst the following:
  - A judge of the high court or one qualified to be appointed as one.
  - A person who has specialized knowledge of finance and accounts of the government.
  - A person who has wide experience in financial matters and administration.
  - A person who has special knowledge of economics.

### Functions

It makes recommendations to the president of India on the following matters:

- The distribution of the net proceeds of taxes to be shared between the Centre and the states between the states
- Grants-in-aid to the states by the Centre (i.e., out of the consolidated fund of India).
- The measures needed to augment the consolidated fund of a state to supplement the resources of the panchayats and the municipalities in the state based on the recommendations made by the state finance commission
- The commission submits its report to the president.
- He lays it before both the Houses of Parliament along with an explanatory memorandum

### Advisory Role

- Only of an advisory nature and hence, not binding on the government.
- It is up to the Union government to implement its recommendations on granting money to the states.

## 7. Comptroller and Auditor General of India

### Introduction

- Article 148 provides the office of the Comptroller and Auditor General of India (CAG).
- He is the head of the Indian Audit and Accounts Department.
- He is the guardian of the public purse and controls the entire financial system of the country
- He is one of the bulwarks of the democratic system of government in India; the others being the SC, the EC, and the UPSC.

### Appointment and Term



- The CAG is appointed by the president of India by a warrant under his hand and seal.
- He makes and subscribes before the president an oath or affirmation
- Term is 6 years/65 years, whichever is earlier.

### Resignation and Removal

- To the president.
- He can also be removed by the president on the same grounds and in the same manner as a judge of the Supreme Court.

### Independence

- He is provided with the security of tenure.
- He can be removed by the president only by the procedure mentioned in the Constitution.
- He does not hold his office till the pleasure of the president
- He is not eligible for further office, either under the Government of India or of any state, after he ceases to hold his office.
- Salary determined by the Parliament (equal to that of a judge of the Supreme Court)
  - Cannot be altered to his disadvantage after his appointment.
- The administrative expenses of the office of the CAG are charged to the Consolidated Fund of India.
- No minister can represent the CAG in Parliament (both Houses) and no minister can be called upon to take any responsibility for any actions done by him

### Duties and Powers

(Article 149) authorizes the Parliament [CAG's (Duties, Powers, and Conditions of Service) Act, 1971].

- He audits the accounts related to all expenditures from the Consolidated Fund of India, the consolidated fund of each state, and the consolidated fund of each union territory having a Legislative Assembly.
- He audits all expenditures from the Contingency Fund of India and the Public Account of India as well as the contingency fund of each state and the public account of each state.
- He audits the receipts and expenditures of the Centre and each state
- He audits the receipts and expenditures of the following:
  - All bodies and authorities are financed from the Central or state revenues;
- He audits the accounts of any other authority when requested by the President or Governor.

- He submits his audit reports relating to the accounts of the Centre/State to the President/Governor, who shall, in turn, place them before both the Houses of Parliament /state legislature (Article 151).
- He ascertains and certifies the net proceeds of any tax or duty (Article 279). His certificate is final. The '**net proceeds**' means the proceeds of a tax or a duty minus the cost of collection.
- He acts as a guide, friend, and philosopher of the Public Accounts Committee of the Parliament.
- He compiles and maintains the accounts of state governments.

The CAG submits three audit reports to the President

1. **Audit Report on Appropriation Accounts**
2. **Audit Report on Finance Accounts**
3. **Audit Report on Public Undertakings.**

The President lays these reports before both the Houses of Parliament.

- After this, the Public Accounts Committee examines them and reports its findings to the Parliament.

The appropriation accounts compare the actual expenditure with the expenditure sanctioned by the Parliament through the Appropriation Act, while the finance accounts show the annual receipts and disbursements of the Union government.

### **Role**

- The CAG is an agent of the Parliament and conducts audits of expenditures on behalf of the Parliament. Therefore, he is responsible only to the Parliament.
- CAG can also conduct the propriety audit, that is, look into the 'wisdom, faithfulness and economy' of government expenditure and comment on the wastefulness and extravagance of such expenditure.
- Unlike the legal and regulatory audit, which is obligatory on the part of the CAG, the propriety audit is discretionary.
- The secret service expenditure is a limitation on the auditing role of the CAG.
- The CAG has no control over the issue of money from the consolidated
- He is concerned only at the audit stage when the expenditure has already taken place
- The CAG of India differs totally from the CAG of Britain which has powers of both the Comptroller as well as the Auditor General.
- In Britain, the executive can draw money from the public exchequer only with the approval of the CAG.

## 8. Attorney General of India

### Introduction

- Related Article - Article 76
- He is the highest law officer in the country.

### Appointment, Qualifications, and Term of Office

- The Attorney General (AG) is appointed by the president.
- He must be a person who is qualified to be appointed a judge of the Supreme Court.
- The term is not fixed by the Constitution.
- The Constitution does not contain the procedure and grounds for his removal.
- He holds office at the pleasure of the president.
- He may also quit his office by submitting his resignation to the president.
- He resigns when the government (council of ministers) resigns or is replaced, as he is appointed on its advice.
- Remuneration as the president may determine.

### Duties and Functions

- To advise the GoI on legal matters, which are referred to him by the president.
- To perform such other duties of a legal character that are assigned to him by the president

The president has assigned the following duties to the AG:

- To appear on behalf of the Government of India in all cases in the Supreme Court in which the Government of India is concerned.
- To appear (when required by the Government of India) in any high court in any case in which the Government of India is concerned.

### Rights and Limitations

- The Attorney General has the right to audience in all courts in the territory of India.
- He has the right to speak and to take part in the proceedings of both the Houses of Parliament or their joint sitting and any committee of the Parliament of which he may be named a member, but without a right to vote.
- He enjoys all the privileges and immunities that are available to a member of Parliament.

The following **limitations** are placed on the Attorney General to avoid any complication and conflict of duty:

- He should not advise or hold a brief against the Government of India.

- He should not defend accused persons in criminal prosecutions without the permission of the Government of India.
- He should not accept an appointment as a director in any company or corporation without the permission of the Government of India.

The Attorney General is not a full-time counsel for the Government.

- He does not fall into the category of government servants.
- Further, he is not debarred from private legal practice.

### **Solicitor General of India**

- They assist the AG in the fulfillment of his official responsibilities.
- Article 76 does not mention the solicitor general and additional solicitor general.
- The AG is not a member of the Central cabinet.

## **9. Advocate General of the State**

### **Introduction**

- Related Article - Article 165
- He is the highest law officer in the state.
  - Thus he corresponds to the Attorney General of India.

### **Appointment and Term**

- The advocate general is appointed by the governor.
- He must be a person who is qualified to be appointed a judge of a high court.

### **Term of Office**

Not fixed by the Constitution.

- The Constitution does not contain the procedure and grounds for his removal.
- He holds office at the pleasure of the governor.
- He may also quit his office by submitting his resignation to the governor.
- He resigns when the government (council of ministers) resigns or is replaced, as he is appointed on its advice.
- Remuneration as the governor may determine.

### **Duties and Functions**

- To perform duties of a legal character that are assigned to him by the governor.
- To discharge the functions conferred on him by the Constitution or any other law.



In the performance of his official duties, the advocate general is entitled to appear before any court of law within the state.

- He has the right to speak and to take part in the proceedings of both the Houses of the state legislature or any committee of the state legislature of which he may be named a member but without a right to vote.
- He enjoys all the privileges and immunities that are available to a member of the state legislature.

## 10. Special Officer for Linguistic Minorities

### Introduction

- Originally, the Constitution of India did not make any provision concerning the Special Officer for Linguistic Minorities
- Later, the States Reorganisation Commission (1953-55) made a recommendation in this regard.
- Accordingly, the Seventh Constitutional Amendment Act of 1956 inserted a new Article 350-B in Part XVII of the Constitution
- This article contains the following provisions:
  - There should be a Special Officer for Linguistic Minorities (appointed by the President of India)
  - Investigate all matters relating to the safeguards provided for linguistic minorities under the Constitution
  - He would report to the President on those matters
  - The President should place all such reports before each House of Parliament and send them to the governments of the states concerned.
- The Constitution does not specify the qualifications, tenure, salaries and allowances, service conditions, and procedure for removal
- He is assisted by a Deputy Commissioner and an Assistant Commissioner.

### Joint State Public Service Commission

- Established for two or more states.
- It can be created by an act of Parliament at the request of the state legislatures concerned.
- JSPSC is a statutory and not a constitutional body.
- The chairman and members of a JSPSC are appointed by the president.

## Term and Composition

6 years/62 years, whichever is earlier.

- They can be suspended or removed by the president.
- They can also resign from their offices at any time by submitting their resignation letters to the president.
- The number of members of a JSPSC and their conditions of service are determined by the president.
- It presents its annual performance report to each of the concerned state governors.
  - Each governor places the report before the state legislature.
- The UPSC can also serve the needs of a state at the request of the state governor and with the approval of the president.